

This playbook defines BrightPath Solutions' standard contractual positions for all vendor and client agreements. All contracts must be reviewed against these standards. Deviations require approval from General Counsel.

STANDARD TERMS — MUST-HAVE CLAUSES

Clause	Standard Position	Acceptable Range	Red Line (Reject)
Indemnification	Mutual — both parties indemnify each other for breaches	Mutual with reasonable carve-outs	One-way indemnification favoring counterparty
Liability Cap	\$2,000,000 aggregate per contract year	Minimum \$1,000,000	Below \$1,000,000 or uncapped
Governing Law	State of Delaware	Delaware, New York, or California	Any other jurisdiction without GC approval
Termination Notice	90 days written notice for termination without cause	Minimum 60 days	Less than 60 days
Auto-Renewal	Acceptable with 60-day opt-out notice	Opt-out notice 45-90 days	Less than 45 days opt-out
IP Ownership	BrightPath retains all pre-existing IP; work product owned by commissioning party	Joint ownership with license-back	Full IP transfer of pre-existing IP
Data Protection	Compliance with applicable privacy laws; 30-day breach notification	Up to 45-day notification	No breach notification obligation
Payment Terms	Net 30 from invoice date	Net 30 to Net 45	Net 60+ without discount

APPROVAL AUTHORITY

Within standard range: Paralegal or Associate Counsel may approve.

Outside standard but within acceptable: Associate Counsel approval required.

At red line: General Counsel must approve or reject.

Contract value above \$5M: Board notification required.